



SUPREME COURT JUDGES (PENSIONARY BENEFITS) ORDER, 2007

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PRESIDENT'S ORDER 9 OF 2007

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Order

to provide for the pensionary benefits to the Judges of the Supreme Court of Pakistan

WHEREAS it is expedient to provide for pensionary benefits to the Judges of the Supreme Court who have ceased to hold office as Judges in pursuance of Article 3 of the Oath of Office (Judges) Order, 2007 and matters connected therewith or ancillary thereto;

NOW, THEREFORE, in pursuance of the Proclamation of the 3rd day of November, 2007, and the Provisional Constitution Order No. 1 of 2007 read with the Fifth Schedule to the Constitution of the Islamic Republic of Pakistan and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Order:-

1. Short title and commencement.-(1) This Order may be called the Supreme Court Judges (Pensionary Benefits) Order, 2007.

(2) It shall come into force at once and shall be deemed to have taken effect on and from the 3rd day of November, 2007.

2. Interpretation. In this Order “Judge” means a Judge of the Supreme Court and includes the Chief Justice of Pakistan.

3. Order to override the other laws. The provisions of this Order shall have effect notwithstanding anything contained in any other law for the time being in force.

4. Entitlement to the pensionary benefits. A Judge of the Supreme Court who has ceased to hold office in pursuance of Article 3 of the Oath of Office (Judges) Order, 2007 shall be entitled to full pension and other retirement benefits calculated on that basis:

Provided that commutation of pension shall be admissible to such Judge on the basis of his actual age as on the 3rd day of November, 2007.

